Republic of the Philippines
Bangsamoro Autonomous Region in Muslim Mindanao
BANGSAMORO TRANSITION AUTHORITY PARLIAMENT
Bangsamoro Government Center, Cotabato City

FIRST REGULAR SESSION

RESOLUTION NO. 277

RESOLUTION APPEALING TO HIS EXCELLENCY, PRESIDENT FERDINAND ROMUALDEZ MARCOS, JR. TO EXTEND THE APPLICATION PERIOD FOR AMNESTY OF QUALIFIED MEMBERS OF MILF AND MNLF

WHEREAS, on February 5, 2021, Presidential Proclamation No. 1090 Series of 2021 was issued granting Amnesty to members of the Moro Islamic Liberation Front (MILF) who have committed crimes punishable under the Revised Penal Code and special penal laws in furtherance of their political beliefs;

WHEREAS, on even date, Presidential Proclamation No. 1091 Series of 2021 was similarly issued granting amnesty to members of the Moro National Liberation Front (MNLF) who have committed crimes punishable under the Revised Penal Code and special penal laws in furtherance of their political beliefs;

WHEREAS, on May 20, 2021, the House of Representatives issued Concurrent Resolutions No. 12 and 13 in support of the declaration of Amnesty as it shares the view that the creation of the National Amnesty Commission and the grant of amnesty in favor of the members of the Moro Islamic Liberation Front, will not only enable the delivery of an important commitment of the government under the Comprehensive Agreement on the Bangsamoro, particularly the gradual normalization of the previously conflict-affected areas but will also provide a meaningful and complete transformation and assimilation of the MILF decommissioned combatants into peaceful and progressive lives towards national reconciliation and healing in the Bangsamoro;

WHEREAS, on January 24, 2022, Senator Panfilo M. Lacson signified his support for the Amnesty Grant in a Sponsorship Speech for Concurring Resolutions Nos. 12 and 13, he expressed that: "giving out a second chance to over 7,600 prospective applicants who are willing to have a new start in life in a secure place in society. Never in our history has our nation sought and demanded a 'time of healing' with much fervor and tenacity than we do today – healing from the health crisis which scarred our people, healing from the economic, social, and political distress that, by and large, spoiled our nation";

WHEREAS, the grant of amnesty is envisioned "to promote an atmosphere conducive to the attainment of a just, comprehensive, and enduring equanimity and is in line with the government's call for peace, unity, and reconciliation to bring closure to past enmity, rancor, and bitterness that has stymied lasting amity among the Filipino people";

WHEREAS, by virtue of the above-stated Proclamations, a National Amnesty Commission is to be created to receive and process applications for amnesty and determine whether the applicants who shall apply are entitled to amnesty;

WHEREAS, Proclamation Nos. 1090 and 1091 provide that "applications for the grant of amnesty shall be filed under oath with the Amnesty Commission within one (1) year from the effectivity of this Proclamation." It further provides that "(the) Proclamation shall take effect upon concurrence by a majority of all the members of the Congress";

WHEREAS, the requisite concurrence of Congress took effect on January 24, 2022, with the issuance of Senate Concurrent Resolutions No. 12 and 13. Given this timeline, there are barely two (2) months left to implement and process the amnesty applications of numerous qualified applicants;

WHEREAS, two out of the three members of the National Amnesty Commission have already been appointed except the chairperson;

WHEREAS, there is a need to fast-track the appointment of the chairperson of the National Amnesty Commission.

NOW, THEREFORE, be it

RESOLVED, as it is hereby resolved by the Bangsamoro Transition Authority of the Bangsamoro Autonomous Region in Muslim Mindanao, To appeal to his excellency, President Ferdinand Romualdez Marcos, Jr. to extend the application period for amnesty of qualified members of MILF and MNLF.

RESOLVED, FURTHER, that copies of this Resolution be furnished to the Philippine Congress, National Amnesty Commission, Intergovernmental Relations Body, and Office of the Presidential Adviser on Peace, Reconciliation, and Unity for information.

ADOPTED, Rabi Al-Akhir 27, 1444/November 21, 2022.

Certified Correct:

PROF. RABY B. ANGKAL
Secretary-General

Attested:

ATTY. PANGALIAN M. BALINDONG
Speaker

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